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DPE Online Meeting: Middle Street Primary School (Brighton)

1 message

Tammy Buchanan <tammy.buchanan@dataprotection.education>

11 July 2023 at 12:05

To: Claire Mcgrath <ClaireMcgrath@middlestreet.brighton-hove.sch.uk>, tammybowles@middlestreet.brighton-hove.sch.uk

Bcc: Tammy Buchanan <tammy.buchanan@dataprotection.education>

Hi both,

Thank you for your time today, it was good to see you again. Please find below the details we discussed:

Data Breach - you confirmed that you had spoken to the parent and the email was deleted so I will confirm with Victoria that the ticket can be closed.

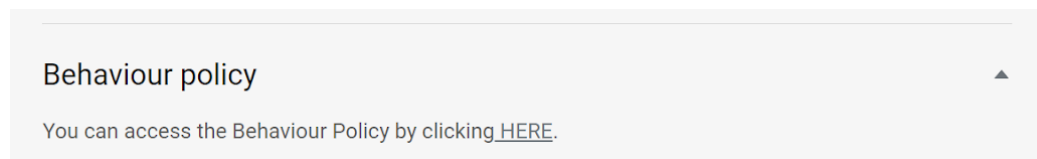
Policies - last time you had advised you were due to have a new website. Looking at the new website, we could not find:

Data Protection Policy

Privacy notices for pupils and general?

The workforce privacy notice can go on the website but should be available somewhere (i.e. school network) for staff to view.

Other broken links were also found in the policies section. It is advised that for good website etiquette not to advertise a click as having the information but then forcing you to another click i.e. shortest number of clicks to arrive, for example:



This is one of the broken links - it goes to a 404 page.

This DfE link shows what needs to be on the website:

<https://www.gov.uk/guidance/what-maintained-schools-must-publish-online#contact-details>

that document has a link to the Data protection toolkit for schools:

<https://www.gov.uk/guidance/data-protection-in-schools/data-protection-policies-and-procedures>

Here is the bit about the privacy notices:

Under UK GDPR and the Data Protection Act 2018, every school has to make its privacy notices freely available to those whose personal data it handles.

A privacy notice explains:

- why a school needs to collect personal data
- what it plans to do with it
- how long it will keep it
- whether it will be sharing it with any other organisation

Privacy notices need to be clear and accessible, and regularly reviewed and updated. Being transparent builds trust, avoids confusion and lets everyone in

the school community know what to expect.

There are also strict rules about what needs to be published about Governors and couldn't find that on the website:

<https://www.gov.uk/guidance/what-maintained-schools-must-publish-online#governors-information-and-duties>

It is very unusual for a school not to host their website with an education-specific provider. I notice your website is hosted by GoDaddy who don't list any data servers in the UK, but say in their privacy notice that they transfer data out of the UK. With this in mind, I would recommend following up by sending a due diligence for them to complete: privacy@godaddy.com which you can then send to us to do the due diligence for you. The due diligence form you need to send them is here: <https://dataprotection.education/best-practice-library/documents/procedures/135-supplier-due-diligence-form>

Supplier Due Diligence: we talked about this and how creating a list is the first step to the record of processing and have put further information below:

Supplier Due Diligence Best Practice Area: <https://dataprotection.education/best-practice-library/best-practice/duediligence-best-practice-area>

Supplier Due Diligence Step by Step: <https://dataprotection.education/best-practice-update/296-due-diligence-stepby-step>

How to copy the generic third party in the KB: <https://dataprotection.education/best-practice-update/296-duediligence-step-by-step>

Example of another school's website: <https://www.trowseprimaryschool.co.uk/key-information/gdpr>

News - a reminder to look out for the newsletter from us, which lets you know of any new functionality/data protection news and it comes from kb@dataprotection.education.

I will shortly send you through an invite for our next meeting in December and look forward to seeing you then. Have a lovely Summer.

Many thanks,

Tammy Buchanan
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